

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
YOEL HERSHKOWITCH, and CHAYA R. HERSHKOWITCH

plaintiffs,

SUMMONS

-against-

Jury Trial Demanded

T MOBILE US, INC., d/b/a/ T-MOBILE, T-MOBILE STORE (SPRINT REPAIR CENTER), CITY OF NEW YORK, POLICE OFFICER MITCHELL ROBERT (SHIELD NO. 417), individually and in his official capacity, and JOHN and JANE DOE T- MOBILE STORE (SPRINT REPAIR CENTER) Employees 1 through 10, individually and in their official capacities, and, JOHN and JANE DOE 11 through 20 NYPD Officers, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

plaintiffs designates
Kings County as the
place of trial.

The basis
of venue
is: CPLR §
504(3)

Defendants.

-----X

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
May 21, 2021

Robert W. Georges

KONTA, GEORGES, & BUZA, P.C.

by: Robert W. Georges

233 Broadway, Ste. 900

New York, New York 10279

Tel. (212) 710-5166

TO:

T-MOBILE US, INC., d/b/a/ T-MOBILE
New York Secretary of State

T-MOBILE STORE (SPRINT REPAIR CENTER)
456 Fulton St
Brooklyn, NY, 11201

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant
THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER MITCHELL ROBERT (SHIELD NO. 417)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
YOEL HERSHKOWITCH, and CHAYA R. HERSHKOWITCH

Plaintiffs,

-against-

T MOBILE US, INC., d/b/a T-MOBILE, T-MOBILE STORE (SPRINT REPAIR CENTER), CITY OF NEW YORK, POLICE OFFICER MITCHELL ROBERT (SHIELD NO. 417), individually and in his official capacity, and JOHN and JANE DOE T- MOBILE STORE (SPRINT REPAIR CENTER) Employees 1 through 10, individually and in their official capacities, and, JOHN and JANE DOE 11 through 20 NYPD Officers, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

**VERIFIED
COMPLAINT**

Jury Trial Demanded

Index No.:

**BASIS FOR VENUE:
CPLR § 504(3)**

Plaintiffs YOEL HERSHKOWITCH, CHAYA R. HERSHKOWITCH, by their attorneys KONTA, GEORGES & BUZA, P.C., complaining of the defendants, respectfully alleges as follows:

NATURE OF THE ACTION

1. Plaintiffs bring this action against T MOBILE US, INC., T-MOBILE STORE (SPRINT REPAIR CENTER), and T- MOBILE STORE (SPRINT REPAIR CENTER) Employees 1 through 10, individually and in their official capacities. for violation of Human Rights Law, Title 8 of the Administrative Code of the City of New York, negligence, negligent hiring and supervision, defamation, false imprisonment, assault and battery that occurred on or around May 21, 2020 .

2. Plaintiffs also brings this action for compensatory damages, punitive damages and attorneys' fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 and the laws of the State of New York for violations of their civil rights, and violations of Title 8 of the Administrative Code of the City of New York by Defendants THE CITY OF NEW YORK, POLICE OFFICER MITCHELL ROBERT (SHIELD NO. 417), individually and in his official capacity, and NYPD Officers JOHN and JANE DOE 11 through 20, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown) as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

PARTIES

3. Plaintiff YOEL HERSHKOWITCH (PLAINTIFF), is a resident of the County of Kings, City and State of New York.

4. Plaintiff CHAYA R. HERSHKOWITCH is a resident of the County of Kings, City and State of New York.

5. Plaintiff CHAYA R. HERSHKOWITCH is the spouse of Plaintiff YOEL HERSHKOWITCH.

6. Defendant T-MOBILE US, INC, (hereinafter referred to as "T-MOBILE") is a foreign corporation with its headquarters in Bellevue, WA, that is duly authorized to do business in the State of New York, with a corporate repair store located at 456 Fulton St, Brooklyn, NY, 11201 and is an American wireless network operator.

7. That on or about April 1, 2020, Defendant T-MOBILE merged with Sprint and took over all Sprint's operations including, but not limited to management, operation and

control of Defendant T- MOBILE STORE (SPRINT REPAIR CENTER) (hereinafter referred to as “T-MOBILE STORE”) located at 456 Fulton Street, Brooklyn, NY 11201.

8. That Defendant T-MOBILE STORE is a corporate store of Defendant T-MOBILE that is located at 456 Fulton Street, Brooklyn, New York, and serves both T-Mobile and Sprint customers and is a Sprint Repair Center.

9. That Defendant T-MOBILE maintains, manages, controls and supervises Defendant T-MOBILE STORE, and its servants, agents, and employees.

10. That Defendants JOHN and JANE DOE T- MOBILE STORE (SPRINT REPAIR CENTER) Employees 1 through 10 (hereinafter referred to as “T-MOBILE DOE Defendants 1-10”), individually and in their official capacities, were the agents, servant, and/or employees of Defendants T-MOBILE, and T-MOBILE STORE (SPRINT REPAIR CENTER). Plaintiff does not know the real identities of the T-MOBILE DOE Defendants 1-10.

11. That Defendant, CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

12. That Defendant, CITY OF NEW YORK, maintains the THE NEW YORK CITY POLICE DEPARTMENT, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, CITY OF NEW YORK.

13. That at all times mentioned herein, MITCHELL ROBERT (SHIELD NO. 417) (hereinafter referred to as “PO ROBERT”) was a police officer employed by THE NEW YORK CITY POLICE DEPARTMENT.

14. That at all times mentioned herein, Defendants JOHN and JANE DOE 11 through 20 NYPD Officers, individually and in their official capacities (“hereinafter referred to as “NYPD DOE Defendants 11-20”) were police officers, detectives or supervisors employed by THE NEW YORK CITY POLICE DEPARTMENT. Plaintiff does not know the real names and shield and/or tax numbers of the NYPD DOE Defendants 11-20.

15. That at all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under the color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State and/or Defendant the CITY OF NEW YORK.

16. That each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendants CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT.

17. That each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by Defendants CITY OF NEW YORK, and CITY OF NEW YORK POLICE DEPARTMENT.

JURISDICTION AND VENUE

18. This action is brought pursuant to New York State Law, 42 U.S.C. Act of 1871, §§ 1983 and 1988, including its Eighth, Fourth, and Fourteenth Amendments to the Constitution of the United States, inter alia.

19. Venue is proper in this county as the transactions and occurrences were in the County of Kings, City and State of New York.

20. Plaintiffs have complied with all conditions precedent to this suit.

21. A Notice of Claim was timely filed, a 50-H hearing was held on or about February 1, 2021, and the claims have not yet been adjusted or paid.

JURY DEMAND

22. Plaintiffs demand a trial by jury in this action.

STATEMENT OF FACTS

23. On or about May 21, 2020, at or around 3:00 p.m., PLAINTIFF was lawfully within the vicinity of Defendant T-MOBILE STORE located at 456 Fulton Street, County of Kings, State of New York.

24. At the above date and time, PLAINTIFF, a man who practices Hasidic Judaism, came to the above vicinity to fix one of his Sprint phones.

25. Upon arrival, PLAINTIFF registered and waited in line outside of Defendant T-MOBILE STORE pursuant to the store's COVID protocols and procedures.

26. Shortly thereafter, Jane Doe, the store's female employee, whose identity is not presently known to PLAINTIFF, called patrons who stood behind PLAINTIFF to enter into the store, but continued to refuse to permit PLAINTIFF into the store without any legitimate reason.

27. That PLAINTIFF complained to Jane Doe and asked her why she let patrons who were standing behind him in line to enter the store in front of him.

28. In response, however, Jane Doe ignored PLAINTIFF's complaints and made anti-semitic comments.

29. Shortly thereafter, PLAINTIFF entered the store.

30. Upon his entrance, Jane Doe continued to harass PLAINTIFF calling him a “Jew” in a mocking and threatening manner, while locking the store’s door to prevent PLAINTIFF from leaving.

31. Jane Doe falsely imprisoned PLAINTIFF when she locked him into the store, as he was unable to leave and this was done without his permission or consent.

32. As a result, PLAINTIFF called 911, and police were dispatched.

33. Prior to the police’s arrival on the scene, T-MOBILE DOE Defendants 1-10 provided no service to PLAINTIFF, and failed to intervene while PLAINTIFF was unlawfully imprisoned in Defendant T-MOBILE STORE.

34. Jane Doe, and T-MOBILE DOE Defendants 1-10 were acting in the scope of their employment and acting in accordance with the rules and regulations of their employers, which violated PLAINTIFF’S state, city and federal rights.

35. When the police arrived, PLAINTIFF informed Defendant PO ROBERT, and NYPD DOE Defendants 11-20 that he was unable to leave Defendant T-MOBILE STORE because Jane Doe and the T-MOBILE DOE Defendants 1-10 locked the door of the store while refusing to provide any services.

36. PLAINTIFF also told the NYPD that he was not doing anything illegal and that he came to Defendant T-MOBILE STORE to repair one of his Sprint phones.

37. PLAINTIFF also asked the NYPD officers to view the surveillance video recording that was readily available at Defendant T-MOBILE STORE.

38. However, despite the fact that Defendants PO ROBERT, and NYPD DOE Defendants 11-20 did not have probable cause to believe that PLAINTIFF had committed any crimes or offenses, the defendant officers placed PLAINTIFF into handcuffs and under arrest.

39. The defendant officers then transported PLAINTIFF to the police precinct, where he spent an extended period of time prior to being released with a Desk Appearance ticket.

40. PLAINTIFF later learned that Jane Doe falsely accused him of assaulting her.

41. These allegations were false; the Defendant officer affirmatively knew that PLAINTIFF did not assault Jane Doe as evidenced from the surveillance video from Defendant T-MOBILE STORE.

42. In fact, PLAINTIFF had no physical contact with Jane Doe , who had no visible injuries and did not require any medical attention upon arrival of the police officers.

43. Notwithstanding, the defendant officers informed employees of the KINGS County District Attorney's Office ("DA's Office") that they had observed PLAINTIFF commit various crimes/offenses.

44. Neither PO ROBERT nor the NYPD DOE defendants 11-20 observed PLAINTIFF violate any laws / ordinances.

45. The allegations made by Defendants to the DA's Office were false, and the defendants knew them to be false at the time the defendants made the allegations.

46. The defendants then forwarded these false allegations to the DA's Office in order to justify the unlawful arrest of PLAINTIFF and to persuade the DA's Office to commence and/or continue the criminal prosecution of PLAINTIFF.

47. The defendants knew and understood that the DA's Office was relying on the truthfulness of defendants' claims and statements in order to evaluate whether to commence a criminal prosecution against the PLAINTIFF. Defendants were aware that the DA's Office

assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's Office were truthful in all material respects.

48. On or about October 13, 2020, all charges against PLAINTIFF were dismissed based on the DA's review of the video surveillance from Defendant T-MOBILE STORE. .

49. PO ROBERT, and the NYPD DOE Defendants 11-20 violated plaintiff's rights, including the state and the constitutional rights to be free from use of assault and battery and use of excessive force, *inter alia*.

50. Specifically, Defendants PO ROBERT, and NYPD DOE Defendants 11-20 approached PLAINTIFF without probable cause and forcibly assaulted him, and used excessive force against him without justification or provocation from the PLAINTIFF.

51. As a result, PLAINTIFF sustained severe injuries, and mental distress that affect his quality of life until this day, together with injuries to his character.

52. That the Defendants T MOBILE US, INC., d/b/a T-MOBILE, T-MOBILE STORE, through their negligent hiring and retention of their agents, servant, and/or employees are liable under the theory of *respondeat superior* for plaintiff's serious injuries, including severe mental distress, and injury to his reputation and character.

53. That Defendant THE CITY OF NEW YORK, through its unconstitutional policies, negligent training, hiring and retention of its employees, deprived plaintiff of his rights under state and federal law, and are otherwise liable under the theory of *respondeat superior* for plaintiffs' serious injuries, and severe mental distress.

CLAIM ONE
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

54. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

55. Defendants T-MOBILE, and T-MOBILE STORE (hereinafter referred to as the “T-MOBILE Defendants”), selected, hired, trained, retained, assigned and supervised its agents, servants, and employees, including Jane Doe and the T-MOBILE DOE Employees 1-10.

56. T-MOBILE Defendants were negligent, reckless, and careless when they selected, hired, trained, retained, assigned, and supervised its agents, servants, and employees, including Jane Doe and the T-MOBILE DOE Employees 1-10.

57. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendant individually named above.

58. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendant individually named above.

59. T-MOBILE Defendants were negligent, reckless, gross negligent and careless when they failed to hire and supervise their servants, agents, and employees; when they negligently employed personnel such as Jane Doe with a known disciplinary history; and when they were otherwise negligent and careless to ensure the safety and well being of individuals such as PLAINTIFF who was lawfully present at or around the vicinity of Defendant T-MOBILE STORE.

60. As a direct and proximate result of this unlawful conduct, plaintiff sustained, *inter alia*, serious injuries, loss of liberty, emotional distress, mental anguish, shock, fright,

apprehension, embarrassment, humiliation, deprivation of constitutional rights, pain and suffering, and injury to their reputation and character.

61. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM TWO
NEGLIGENCE AGAINST ALL DEFENDANTS

62. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

63. Defendants had a duty of care in their interactions with the plaintiff, they violated their duty of care, which was a direct and proximate cause in bringing about the plaintiffs' severe injuries.

64. That the Defendant THE CITY OF NEW YORK was negligent, reckless, gross negligent and careless when they failed to hire and supervise their servants, agents, and employees; when they negligently employed personnel such as Jane Doe with a known disciplinary history; and when they were otherwise negligent and careless to ensure the safety and well being of individuals such as PLAINTIFF who was lawfully present at or around the vicinity of Defendant T-MOBILE STORE.

65. Defendant THE CITY OF NEW YORK was negligent, reckless, gross negligent and careless when they failed to train its police officers, including PO MITCHELL, and the NYPD Doe Defendants 11-20 in the fundamental law of arrest and use of force in effecting arrest; in fostering and encouraging a policy of use of excessive and undue force, false arrests and assaults; in fostering and encouraging a policy of systemic deficiencies in disciplining

officers and investigating complaints; in failing to afford defendants the proper and special training necessary for the duties they could foreseeably be expected to perform in the course of their employment; in failing to exercise due diligence in disciplining, supervising, controlling and instructing its police officers, including PO ROBERT, and the NYPD Doe Defendants 11-20; in keeping inaccurate police records; in failing to keep accurate records; in failing to timely update their records; in failing to properly and reasonably train, supervise, direct and control its Police Officers; and in otherwise being careless, reckless and negligent under the circumstances.

66. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and pain and suffering, and serious personal injuries.

67. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM THREE
ASSAULT AND BATTERY AGAINST ALL DEFENDANTS

68. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

69. Defendants' aforementioned actions placed the plaintiff in apprehension of imminent harmful and offensive bodily contact.

70. Defendants police officers and the T-MOBILE Defendants , including PO ROBERT, the NYPD Doe Defendants 11-20, and Jane Doe touched the plaintiff in a harmful and offensive manner.

71. Defendants police officers, and the T-MOBILE Defendants , including PO ROBERT, the NYPD Doe Defendants 11-20, and Jane Doe created a reasonable apprehension of bodily harm and/or offensive contact when they made anti-semitic comments against him in a threatening and harassing manner, and when they handcuffed PLAINTIFF and used excessive force against him.

72. That Defendant Jane Doe did so while acting in the scope of her employment and under the direction, supervision and control of the T-MOBILE Defendants.

73. The Defendants did so without privilege or consent from the plaintiff.

74. Defendant THE CITY OF NEW YORK is liable for the defendants officers' wrongdoing under the doctrine of respondeat superior.

75. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and pain and suffering, and serious personal injuries.

76. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM FOUR
VIOLATIONS OF NEW YORK STATE AND NEW YORK CITY HUMAN
RIGHTS LAWS AGAINST T-MOBILE DEFENDANTS

77. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

78. T-MOBILE Defendants, and T-MOBILE DOE Defendants, including Jane Doe engaged in an unlawful discriminatory practice against PLAINTIFF directly or indirectly, and refused to provide him with services, accommodations, advantages, and facilities that are offered to the public in general by the T-MOBILE Defendants because of the actual or perceived race, creed, color, national origin, age, gender, disability, marital status, partnership status, sexual orientation or alienage or citizenship status of PLAINTIFF in violation of N.Y. Exec. Law § 296(2)(a), and N.Y. City Admin. Code § 8-107(4)(a).

79. As a result, the plaintiff suffered impairment of reputation and standing in the community, personal humiliation, and mental anguish and suffering.

80. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM FIVE
Under State and Federal Law
UNLAWFUL STOP, SEARCH, AND SEIZURE

81. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

82. As a result of the aforesaid conduct by defendants, PLAINTIFF's person and possessions were illegally stopped, searched, and seized without consent, a valid warrant, probable cause, reasonable suspicion, privilege or any other lawful basis, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and New York State.

83. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM SIX

Under State and Federal Law
FALSE ARREST

84. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

85. Defendant police officers arrested PLAINTIFF in the absence of probable cause and without a valid warrant.

86. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the PLAINTIFF's rights.

87. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM SEVEN
Under State and Federal Law
MALICIOUS ABUSE OF PROCESS

88. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

89. The individual defendants issued a legal process to place PLAINTIFF under arrest.

90. The Municipal Defendants arrested PLAINTIFF in order to obtain collateral objectives outside the legitimate ends of the legal process.

91. The Municipal Defendants acted with intent to do harm to PLAINTIFF without excuse or justification.

92. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

93. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM EIGHT
Under State and Federal Law
MALICIOUS PROSECUTION

94. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

95. By their conduct, as described herein, defendants are liable to PLAINTIFF for having committed malicious prosecution under the laws of the State of New York.

96. Defendants maliciously commenced criminal proceeding against PLAINTIFF, falsely accusing PLAINTIFF of violating the law.

97. Defendants falsely and without probable cause charged PLAINTIFF with violations of the laws of the State of New York.

98. The commencement and continuation of the criminal proceedings against PLAINTIFF was malicious and without probable cause.

99. All charges were terminated in PLAINTIFF's favor.

100. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFF. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFF sustained the damages alleged herein.

102. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM NINE
Under Federal Law
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

103. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

104. Defendants created false evidence against PLAINTIFF.

105. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

106. Defendants misled the prosecutors by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

107. In creating false evidence against PLAINTIFF, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFF's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

108. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, was put in fear for PLAINTIFF'S safety, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

109. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFF sustained the damages alleged herein.

110. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM TEN
Under State and Federal Law
UNREASONABLE FORCE

111. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

112. The defendants violated the Fourth and Fourteenth Amendments and New York State Law because they used unreasonable, excessive, and unjustified force on PLAINTIFF.

113. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

114. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM ELEVEN
Under Federal Law
FAILURE TO INTERVENE

115. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

116. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

117. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

118. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained

the damages hereinbefore alleged.

119. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM TWELVE
Under State Law
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

120. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

121. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

122. The aforementioned conduct was committed by defendants while acting within the scope of their employment by the T-MOBILE Defendants.

123. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by the T-MOBILE Defendants.

124. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

125. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

126. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to PLAINTIFF.

127. As a result of the aforementioned conduct, PLAINTIFF suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

128. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM THIRTEEN
Under State Law
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

129. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

130. By reason of the foregoing, each Defendant was negligent in committing conduct that inflicted emotional distress upon PLAINTIFF.

131. The negligent infliction of emotional distress by these Defendants was unnecessary and unwarranted in the performance of their duties.

132. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon PLAINTIFF.

133. The Defendant employers T-MOBILE Defendants, THE CITY OF NEW YORK, and NYPD are responsible for their wrongdoings of their employees and agents under the doctrine of *respondeat superior*.

134. As a direct and proximate result of the misconduct and abuse of authority detailed above, PLAINTIFF sustained the damages hereinbefore alleged.

135. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM FOURTEEN
Under Federal Law
DEPRIVATION OF FEDERAL RIGHTS

136. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

137. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

138. All of the aforementioned acts deprived the plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

139. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

140. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, all under the supervision of ranking officers of said department.

141. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

142. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and pain and suffering.

143. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

CLAIM FIFTEEN
Under Federal Law
MUNICIPAL LIABILITY

144. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

145. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

146. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- b. arresting innocent persons notwithstanding the existence of credible evidence, which exonerates the accused of any criminal wrongdoing;
- c. using unnecessary excessive force;
- d. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and
- e. fabricating evidence in connection with investigations of misconduct in order to avoid repercussions;

147. The foregoing customs, policies, usages, practices, procedures and rules of CITY OF New York and CITY OF New York POLICE DEPARTMENT constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs .

148. The foregoing customs, policies, usages, practices, procedures and rules of CITY OF New York and CITY OF NEW YORK POLICE DEPARTMENT were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

149. The foregoing customs, policies, usages, practices, procedures and rules of CITY OF New York and CITY OF NEW YORK POLICE DEPARTMENT were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

150. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiffs' constitutional rights.

151. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiffs' constitutional rights.

152. The acts complained of deprived the plaintiffs of their rights:

- a. not to be deprived of liberty without due process of law;
- b. to be free from seizure and arrest not based upon probable cause;
- c. not to have summary punishment imposed upon them; and
- d. to receive equal protection under the law.

153. As a direct and proximate result of this unlawful conduct, plaintiffs sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and pain and suffering.

154. As a result of the foregoing, plaintiffs were damaged in an amount that exceeds the jurisdictional limits of all other courts which would otherwise have had jurisdiction and asks for an award of money damages as a just compensation.

CLAIM SIXTEEN
LOSS OF SERVICES AND CONSORTIUM

155. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

156. Plaintiff CHAYA R. HERSHKOWITC is the spouse of PLAINTIFF.

157. As a result of the foregoing, Plaintiff CHAYA R. HERSHKOWITC was caused to suffer loss of services and consortium.

158. By the reason of the above, plaintiff CHAYA R. HERSHKOWITC was injured in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

159. By the reason of the above, plaintiffs demand compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- a. an order awarding compensatory damages in an amount to be determined at trial;
- b. an order awarding punitive damages in an amount to be determined at trial;
- c. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- d. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
May 24, 2021

Robert W. Georges

KONTA GEORGES & BUZA, P.C.

By: Robert W. Georges, Esq.

233 Broadway, Ste. 900

New York, New York 10279

Tel. (212) 710-5166

ROBERT W. GEORGES, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is the attorney for the plaintiffs in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by the deponent and not by the plaintiffs is that the plaintiffs are not within the county wherein the deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
May 24, 2021

Robert W. Georges

ROBERT W. GEORGES, ESQ